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EXTRAORDINARY

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PART IV (A) — PROVINCIAL COUNCIL

Provincial Council Notification

North Western Provincial Council

Livestock Statute No. 03 of 2017 of the Provincial Council of the North Western Province

The above mentioned Statute passed by the Provincial Council of the North Western Province on 06th June 2017 and assented by the Governor of North Western Province on 06th December 2017 is hereby published for the information of the public.

R. M. R. M. RATNAYAKE,
Council Secretary,
Provincial Council,
North Western Province.

Council Office,
North Western Provincial Council,
Kurunegala,
13th December, 2017.

Livestock Statute No. 03 of 2017 of the Provincial Council of the North Western Province

A statute to Provide for the Implementation of Provincial Livestock Policies towards a Sustainable Development in the North Western Province; For the Realization of objectives ; To Provide for the Formulation, Implementation and Operation of Plans with Regard to the Preservation, Taking care and Development of Livestock and Prevention of animal Diseases and for Matters connected therewith and Incidental thereto and to provide for the repeal of North Western Provincial animal husbandry statute No. 04 of 1998.

Long Title

This Statute shall be inconsistent as applicable with the Animal Act, No. 29 of 1958 as amended by the Act, No. 10 of 1968, the Act, No. 46 of 1988 and the Act, No. 10 of 2009; the Animal Feed Act, No. 15 of 1986; the Butchers Ordinance No. 9 of 1893 as amended by the Butchers



(Amendment) Act, No.44 of 1947, the Butchers (Amendment) Act, No.02 of 1951, the Butchers (Amendment) Act, No.48 of 1953, the Butchers (Amendment) Act, No.31 of 1976 and the Butchers (Amendment) Act, No.60 of 1981; the Epidemic Act, No. 33 of 1952; and the Anti Rabies Act, No. 23 of 1956.

Be it enacted by the Provincial Council of the North Western Province of the Democratic Socialist Republic of Sri Lanka as follows :

Short Title

01. This Statute may be cited as the Livestock Statute, No.03 of 2017 of the Provincial Council of the North Western Province.

Date of
Operation

02. This Statute shall come into operation on such date as may be appointed by the Governor of the North Western Province.

Objectives of the
Statute

03. Objectives of the Statute are as follows:

- (1) To provide for the formulation, planning, implementation, operation and regulation of policies relating to livestock in compliance with the national policies and needs of the province;
- (2) To provide legal provisions for the preservation, regulation, caring, improving of livestock and production and use of animal feed and medicines and prevention of animal diseases within the North Western Province;
- (3) To establish the North Western Provincial Department of Animal Production and Health;
- (4) To establish the North Western Provincial Livestock Development Committee;
- (5) To empower farmers engaged in the livestock sector in the North Western Province;
- (6) To establish Zonal and Regional Livestock Development Committees and Rural Livestock Development Societies of those engaged in the livestock sector in the North Western Province;
- (7) To ensure the maintenance of environment friendly farms of prescribed standard and healthy and qualitative animal production in the province;
- (8) To establish and manage the North Western Provincial Dairy Promotion Fund.

Part I

Policy Planning, Management and Regulation

Policy Planning on
Animal produc-
tion, Health and
Development

04. The Provincial Ministry in charge of the subject shall be vested with the policy planning on animal production, health and development in the North Western Province in compliance with the national policy and needs of the province. For the purpose, proposals from the rural, regional, zonal and provincial livestock development committees established within the province and those of the government, semi-government, co-operative, non-government, volunteer organizations and volunteers may be sought.

Provincial Live-
stock Develop-
ment Plan

05. The Provincial Director shall prepare a five year Provincial Livestock Development Plan giving due consideration to the proposals of the institutions, organizations or persons referred to at section 04 above and submit same for the approval of the Provincial Livestock Development Committee once in every 05 years.

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| 06. The Provincial Ministry and the Department in charge of the subject shall provide livestock and health, breeding, extension, training, marketing, promotion and provincial research services needed by those engaged in livestock sector within the province. | Provision of Services |
| 07. The Animal Development Advisory Divisions and zones shall be determined on the basis of the National policy and extension of the population, extent of land, animal population, climatic conditions and administrative boundaries within the province and Regional Veterinary Medical Officer's Division shall be determined on the basis of administrative boundaries. | Demarcation of Animal Development Advisory Divisions, Regional Veterinary Medical Officer's Divisions and Zones |
| 08. Provincial Research Institutions may be established and maintained for the needs of the livestock development field within the province. | Research Institutions to be established and Maintained |
| 09. Human resources development Divisions or Units may be established for the purpose of empowering stakeholders with a view to promoting livestock development. | Human Resources Development Units to be Established |

Part II

Establishment, composition, powers and functions of the Provincial Department of Animal Production and Health

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| 10. There shall be established a Department which shall be called "North Western Provincial Department of Animal Production and Health" (herein after referred to as the "Department") to implement the provisions and to achieve objectives of this Statute. | Establishment of the Department |
| 11. The North Western Provincial Department of Animal Production and Health shall, by the name assigned to it be a body corporate and shall have a perpetual succession and a common seal and may carry out all functions related to the livestock sector and sue and be sued in such name and may make submissions with regard to other legal affairs. | Department to be a body corporate |
| 12. The First Class Veterinary Medical officer who called as the Director of Animal Production and Health Service shall be appointed by the Governor of the North Western Province asking the Minister of the subject to implement the statutes vested by the Department according to the relevant Service Minute. | Appointment of the Provincial Director |
| 13. For the purpose of execution of the duties and functions of the Department, there may be appointed Additional Provincial Directors, Subject Specialists, Deputy Directors, District Veterinary Medical officers, Veterinary Medical officers, Animal Husbandry Officers, Animal Development Instructors, and other ancillary staff. | Constitution of the Department |
| 14. All officers and employees who are in service of the North Western Provincial Department of Animal Production and Health on the day of coming into operation of this Statute shall be deemed to have appointed under this Statute. | Appointment of the Staff |
| 15. (1) Powers to execute the directions and orders made for the purpose of provisions of this Statute and matters incidental thereto shall be vested in the Director subject to the general administration of the Secretary. | Powers and responsibilities of the Provincial Director |
| (2) The Director may exercise the powers vested in him by delegating such powers to other officers of the Department as the case may be. | |
| (3) The Director shall account to the Secretary for the management of all physical, financial and human resources including moveable and immovable assets of the Department. | |

Power to inspect
farm or manu-
facturing Plants

16. (1) The Provincial Director or any other officer duly authorized by the Provincial Director shall have the powers to enter and inspect any farm or manufacturing plant or sales outlet or cold storage at any time for the purpose of execution of provisions under this Statute.
- (2) No person shall obstruct any authorized officer exercising his powers under this Statute or regulations made there under.
- (3) The owner or the person in charge of or every person present at the site subjected to inspection shall be bound to provide the officer carrying out the inspection under subsection (1) of section 16 above with samples or other information as required by the officer in carrying out his duties.
- (4) No person shall provide false or misleading samples or information to any officer engaged in obtaining samples or information in a formal manner.

Duties and respon-
sibilities of the
Department

17. The Department shall execute following functions for the development, preservation, promotion, extension and regularization of livestock within the province:
- (1) to formulate and implement the annual plan in compliance with five year Plan;
 - (2) to ensure health care of animal by control, prevention of and treatment to animal diseases;
 - (3) to carry out breeding for the maintenance of an environmental friendly animal population of high genetic quality which suits the needs of the province;
 - (4) to implement extension and training programmes;
 - (5) to implement production and sales promotional programmes;
 - (6) to conduct provincial researches and surveys and publicize their results;
 - (7) to introduce new technology and farm mechanizations which suit the province;
 - (8) to liaise with research institutes of national, provincial and regional level, universities and other institutes related to animal husbandry;
 - (9) to introduce, distribute and sell high quality breeding and plant materials necessary for the development of animal farming;
 - (10) to register, issue licenses to, supervise and regulate all institutions, organizations and persons related to the field of livestock :
 - I. rural societies and regional and zonal livestock development committees ;
 - II. animal farms ;
 - III. animal feed, animal breeding matters, livestock medicine, chemicals, equipment and manufacturing plants or manufacturers;
 - IV. animal feed, animal breeding matters, livestock medicine, chemicals or equipment distribution institutions or distributors or sales outlets ;
 - V. all livestock product cold stores within the province;
 - VI. institutions which purchase livestock manufactured within the province ;

VII. mobile sellers ;

VIII. animal caretakers, distributors and sellers ;

IX. all voluntary organizations and individuals involved in the livestock sector.

(11) to maintain and update all data bases related to livestock sector;

(12) to ensure hygiene and quality of animal productions and standardization of farms;

(13) to maintain laboratories to commensurate with the needs of the province;

(14) to prevent and control animal diseases in the province;

(15) to provide for and regulate the environmental friendly animal farms, manufacturing plants, cold storages, sales outlets, in accordance with accepted standards;

(16) to control and prevent diseases transmitted from animals to humans;

(17) to ensure animal welfare;

(18) to grant certificates of identification, health and eligibility with regard to transportation of animals;

(19) to inspect accounts of rural societies, regional and zonal livestock development committees and give necessary advice;

(20) to regulate manufacture, storage, sale, and use of animal feed, animal breeding maters, veterinary medicines and chemicals ;

(21) to implement veterinary public health services ;

(22) to organize provincial exhibitions, functions and competitions in relation to the livestock sector and appreciate those who are engaged in the sector;

18. (1) The annual development plan for the coming up year on the development of livestock institutions and promotion of animal husbandry within the province, shall be prepared by the Director and be submitted for approval of the Secretary before 31st date of October of the current year, based on the Provincial livestock development plan prepared in terms of the provisions of section 05 of this statute.

(2) The annual performance report relevant to each calender year shall be prepared by the Director and be submitted to the Secretary prior to 15th date of March of next year.

Part III

Registration of Institutions and individuals

19. All organizations and persons below mentioned who are engaged in livestock sector in the North Western Province, shall obtain a Certificate of Registration issued by the Director and the same shall be renewed annually.

Institutions and
individuals to register

(1) rural societies and regional and zonal livestock development committee.

(2) animal farms.

	(3) animal feed, animal breeding matters, veterinary medicines, chemicals, equipment, manufacturing plants or manufacturers. (4) animal feed, animal breeding matters, livestock medicine, chemicals or equipment distribution institutions or distributors, sales outlets or stores. (5) all livestock product cold stores within the province. (6) institutions which purchase livestock manufactured within the province. (7) mobile sellers. (8) animal caretakers, distributors and salesmen. (9) every voluntary organization or individual engaged in the field of livestock.
Requirements for the registration	20. For the purpose of registration under section 19 above, the applicant shall: (1) make the application on the specimen prescribed by the Provincial Director. (2) pay a registration fee as prescribed by the Minister. (3) comply with the criteria and standards specified by regulations made under Section 84 (1) of this Statute. (4) fulfill all other legal requirements as required by other institutions in addition to the regulations of this Statute.
Certificate of Registration not to	21. No person shall transfer or alienate the certificate of registration or alter any information contained therein without the approval of the Provincial Director.
Rejection of Registration.	22. If any application for registration made under Section 19 shall not be entertained unless it meets the requirements specified in Section 20, the same shall not be registered and be informed thereof to the applicant in writing.
Temporary suspension of registration	23. (1) When the Director determines that any institution, individual or organization that has been registered under Section 19 of this Statute, acts in contravention of the objectives of the Statute or does not comply with the standards specified by regulations, the registration of such institution, individual or organization may be temporarily suspended. (2) In the event of temporarily suspension of registration, the Director shall inform in writing the reasons lead to such suspension to the holder of the certificate of registration. (3) When the registration is temporarily suspended, if the institution, individual or organization whose registration is so suspended takes actions to make good the reasons lead to such suspension and to meet the stipulated requirements within a reasonable time as determined by the Director, the registration of such institution, individual or volunteer organization shall be reinstated.
Cancellation of Registration	24. If the requirements within the stipulated reasonable time as per section 23 (3) of this Statute are failed to be met, the registration shall be cancelled and be informed thereof to the applicant concerned.
Appeals from rejection or cancellation of registration	25. The party which is in receipt of a notice to the effect that the registration was rejected under Section 22 of this Statute or that the registration was cancelled under Section 24, may make

an appeal there from to the Minister in charge of the subject within 45 days from the receipt of such notice.

26. (1) When an appeal is received under Section 25 of this Statute, the Minister shall direct the Secretary to conduct an inquiry and determine thereon.

Powers to determine appeals

(2) The Secretary after conducting an inquiry, shall make recommendations to the Minister to confirm or revise or reject the determination of the Director.

(3) The Minister shall submit his decision within 45 days from the receipt of the appeal and the decision of the Minister thereon shall be final and conclusive.

27. (1) When a person who has been convicted by Court under section 92 of this Statute for the offence of maintaining a farm, cold storage, manufacturing plant or sales outlet without a license issued under section 19 of this Statute or regulations made thereunder, continues to maintain the farm, cold storage, manufacturing plant or sales outlet, an order may be issued on a request made in that regard from the Magistrate's Court by the Director or any other person authorized by him, directing such person to close down such farm, cold storage, manufacturing plant or sales outlet until such time the person concerned obtains a license again.

Order to close down on rejection or cancellation of registration.

(2) In any proceeding under the above section, the certificate issued by the Director or any other officer duly authorized by him shall be prima facie evidence of the content therein to the effect that the person whose name appears on the certificate continues to maintain the farm, cold storage, manufacturing plant or the sales outlet without a license.

(3) Provided however that, in the event of submission of an appeal under Section 25 of this Statute, the closure shall be deferred pending the determination of the appellate inquiry.

(4) When the decision of the Director is confirmed under Section 23 (2) of this Statute and at the appellate inquiry, action shall be taken to close down within 30 days from the date of the appellate determination.

28. When the Provincial Director identifies any premises as a threat to the maintenance of animal welfare of the province, he shall obtain a temporary closing order in that regard from a Magistrate court.

Closing order under special circumstances

29. (1) When any person fails to comply with the closing order issued under Section 27(1) of this Statute, the Magistrate shall issue an order requiring and authorizing the fiscal of the court to close down the farm, cold storage, manufacturing plant or sales outlet mentioned in the said order and the fiscal shall execute such order on a date prior to not later than three full days or sooner than seven full days from the date of the order.

Closure

(2) The order shall be sufficient authority for the fiscal or any other police officer authorized by him for the purpose to enter the farm, cold storage, manufacturing plant or sales outlet together with the assistants deemed necessary for the purpose of closing down such farm, cold storage, manufacturing plant or sales outlet.

Part IV

Provincial Livestock Development Committee

30. There shall be established a Provincial Livestock Development Committee to facilitate the implementation of the Livestock Statute of the Province. The Provincial Minister in charge of the subject of Livestock shall be the Chairman of the Committee and the Secretary to the Provincial Ministry in charge of the subject of the Livestock shall be the Secretary to the

Provincial Livestock Development Committee.

Committee. This Committee may function in collaboration with the Provincial Agriculture Committee and Provincial Irrigation Committee.

The Constitution of
the Committee

31. (1) The constitution of the Committee shall be as follows:

- I. five Council Members nominated by the Advisory Committee to the Provincial Ministry in charge of the subject of Livestock to represent each Veterinary Medical Officer's Division;
- II. District Secretaries of the districts of Kurunegala and Puttlam or their representatives;
- III. Senior Deputy Inspector General of Police of the North Western Province or his representative;
- IV. North Western Provincial Director of Animal Production and Health;
- V. North Western Provincial Director of Agriculture;
- VI. North Western Provincial Director of Irrigation;
- VII. North Western Provincial Commissioner of Land;
- VIII. North Western Provincial Director of Health Services;
- IX. North Western Provincial Commissioner of Co-operative Development;
- X. Deputy and Assistant Commissioners of Agrarian Services of the districts of Kurunegala and Puttlam;
- XI. Director of North western Provincial Environment Authority;
- XII. a representative nominated by the Director General of the Department of Animal Production and Health;
- XIII. District Managers of the Agricultural and Agrarian Insurance Board;
- XIV. Deputy Directors in charge of zones of the Provincial Department of Animal Production;
- XV. Representatives of State banks;
- XVI. A provincial representative of the Livestock Development Board;
- XVII. Chairpersons of Zonal Livestock Development Committees;
- XVIII. Three Heads of Institutes involved in livestock development;
- XIX. Three representatives of dairy purchasing institutions on order of purchase.

(2) The Committee may co-opt the representatives or individuals of organizations and institutions for the deliberations of the Committee as may be determined by the Minister.

Appointment of
members to the
Provincial Livestock
Development Com-
mittee

32. The members mentioned under I to XVII in subsection 31 (1) of this Statute shall be ex-officio members of the Committee and those other members mentioned under XVIII to XIX may be appointed by the Minister at his discretion.

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| 33. The term of office of the members appointed by the Minister shall be two years. | Term of Office of appointed members |
| 34. Where a member appointed by the Minister vacates office by expiry of term of office, resignation, removal by the Minister at his discretion, absence from three consecutive meetings, death or insanity, the Minister shall fill the vacancy so created. | Vacation of membership and filling up of vacancies |
| 35. The Provincial Committee shall meet at least once in every two months. The Secretary, if found necessary, may convene supplementary meetings of the Committee on the direction of the Chairman. | Meetings of the Committee |
| 36. (1) The quorum of the Committee shall be $\frac{1}{3}$ of the membership.
(2) The existence of vacancies in the Committee shall not hinder the conduct of meetings of the Committee or the making of decisions at such meetings. | Quorum of the Committee |
| 37. The powers and functions of the Provincial Livestock Development Committee shall be :-
(1) to submit recommendations and proposals for the formulation of policies pertaining to matters stipulated in this Statute in compliance with the National Policy and needs of the province;
(2) to provide necessary advice for the operation and implementation of matters stipulated in the Statute;
(3) to approve the five year Livestock Development Plan and other long term and medium term development plans forwarded to the Committee;
(4) to take follow up actions and to review the formulation and implementation of the Provincial Livestock Development Policy while providing necessary resources, guidance and assistance for the same;
(5) to grant prior approval for any programme or project for the extension and promotion of and education on livestock, provision of services and for researches on livestock to be implemented within the province by any governmental or non-governmental institution, organization, foundation, society, project, programme or similar institution, individual or group of persons and to take appropriate action when relevant conditions are violated.
(6) to resolve the issues submitted to the Provincial Livestock Committee. | Powers and functions of the Committee |
| 38. (1) The Provincial Committee may make procedures for the conduct of business of the meetings of the Committee.
(2) The members of the Committee participating in the meetings thereof may be remunerated at such rates as may be determined by the Minister and be approved by the Governor. | Procedures and remuneration for participation |

Part V

Rural Livestock Development Societies

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| 39. The farmers engaged in livestock activities in a Grama Niladhari division or any part thereof or several divisions may get together and set up Rural Livestock Development Societies for each field of animal husbandry or in amalgamation and every such society shall be registered with the Department. | Setting up and registration of Rural Livestock Development Societies. |
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Rural Livestock Development Society to be a body corporate	40. Rural Livestock Development Society shall, by the name assigned to it be a body corporate and shall have perpetual succession and a common seal and may carry out all functions related to the livestock sector and may sue and be sued in such name.
The Object of Setting up of Societies	41. The object of setting up of these societies shall be to develop the livestock sector by mobilizing those who are engaged in the livestock sector at rural level and thereby empowering them.
Membership	42. Qualifications to be eligible for membership: (1) to be a citizen of Sri Lanka; (2) to be not less than 18 years of age; (3) the farm to be located within the area of authority of the Livestock Development Society; (4) the farm to have registered with the Department of Animal Productions.
Constitution and term of Office	43. Every Rural Livestock Development Society shall appoint an executive committee comprising of Chairman, Secretary, Treasurer, Vice-chairman, Co-Secretary and six members and the term of office of such office bearers shall be one year from the appointment.
Constitution and term of Societies	44.(1) The Director shall prepare the constitution for the Rural Livestock Development Societies which shall be approved by the Minister.
Powers and functions	(2) Every Rural Livestock Development Society shall comply with the constitution. 45. The powers and functions of Rural Livestock Development Societies: (1) to formulate and implement livestock development plan for the area of authority of the society, in compliance with the provincial plan and co-ordinate and regulate the implementation of the said plan; (2) to facilitate and liaise with relevant institutions for the development of farms of members; (3) to resolve issues relating to livestock sector arising within the area of authority of the society; (4) to maintain an updated data base relevant to the sector and disseminate such data to relevant parties when the need arises; (5) to implement loan schemes for members of the society; (6) to implement programmes to enhance the funds of the society; (7) to work for the welfare of members of the society; (8) to nominate a member to represent the Regional Livestock development Committee; (9) to implement the insurance scheme; (10) to organize programmes to create new farmers.
Meeting of the Society and the quorum of such meeting	46.(1) Meetings of the Society shall be convened once in every month or two months and supplementary meetings of the Society may be convened at the request of the majority of members.

- (2) The quorum of the meetings shall be $\frac{1}{3}$ of the membership.
47. (1) When a member vacates office by reason of :
- I. resignation;
 - II. absence from three consecutive meetings;
 - III. death or insanity;
 - IV. removal at the will of the majority members on grounds of any breach of the Constitution or distancing from the livestock sector;
- such member shall cease to be a member.
- (2) When a member ceases to be a member or resigns or is removed at the will of the majority members, the office of such member shall cease.
48. There shall be paid into the Rural Livestock Development Fund:
- I. the membership subscription;
 - II. donations by the State, Provincial, Non-Governmental organizations;
 - III. donations by individuals;
 - IV. interest and dividends of the fund;
 - V. All money received from other sources.
49. The Accounts of the Fund :
- (1) The accounts of the Fund of the society shall be maintained in a State Bank and the accounts of fund shall be maintained as provided by the Constitution of the society.
- (2) The Director or any other officer authorized by him shall examine the accounts of the Fund annually or as appropriate.
50. (1) The supervision of the affairs of, examination of books of and providing guidance and advice to Rural Livestock Development Societies established within his area of authority shall be vested in the Animal Development Advisor.
- (2) Any officer duly authorized by the director for the purpose, may supervise and examine the books of Rural Livestock Development Societies.
51. (1) The Director shall appoint a staff grade public officer as the liquidator to cancel the registration and to liquidate any registered Rural Livestock Development Society on any one or more of the following grounds:
- (I) the membership declines to less than eleven;
 - (II) being defunct for a period exceeding one year;
 - (III) has acted contrary to its objects;
 - (IV) a number of members not less than two thirds ($\frac{2}{3}$) of the membership making a request to the Director citing that the society has failed to act for the achievement of its objectives.
- (2) The liquidator appointed under Subsection 51(1) above shall have the following powers, subject to the prior approval of the Secretary to the Provincial Ministry in charge of the subject:
- (I) to determine the priority among the creditors of the society;
 - (II) to sell properties of the society;
 - (III) to settle any claims by or against the society;
 - (IV) to distribute assets of the society as required.

- (3) The Liquidation Notice of the liquidator shall be published in newspapers published in all three languages viz Sinhala, Tamil and English.
- (4) When a society is liquidated, the fund of the society shall be used for the settlement of liquidation expenses in the first instance and thereafter for the settlement of its liabilities. The surplus of funds on liquidation shall be credited to the Dairy Promotion Fund.

Part VI

Regional Livestock Development Committee

Establishment and registration of Regional Livestock Development Committees	52. There shall be established a Regional Livestock Development Committee for each Regional Veterinary Medical Officer's Division and be registered with the Department.
Constitution of the Committees	53. (1) The Director shall prepare the Constitution of the Regional Livestock Development Committees which shall be approved by the Minister. (2) Every Regional Livestock Development Committee shall act in compliance with the said Constitution.
The constitution of the Committee.	54. (1) The Committee shall constitute of the following; (I) Veterinary Medical Officer; (II) Public Health Veterinary Medical Officer; (III) Animal Development Instructors; (IV) An Agriculture promotion officer nominated by the Secretary to the Provincial Ministry of Agriculture; (V) A Public Health Inspector nominated by the Regional Medical Officer of Health; (VI) An Agriculture advisor nominated by the Provincial Director of Agriculture; (VII) Agents nominated by the regional livestock development societies; (VIII) A Coconut Development officer nominated by the regional Manager of the Coconut Development Board; (IX) An officer involved in the sector nominated by the Divisional Secretary; (X) An Environmental officer of the relevant Local Authority; (XI) Regional Agents of dairy purchasing companies within the North Western Province appointed by the Deputy Director in charge of the zones. (2) Where an appointed member vacates office, the Deputy Director in charge of the Zones shall, on the recommendation of the Veterinary medical Officer, nominate another member to represent the relevant field of the member who vacates office.
Associated Membership	55. The representatives of governmental, non-governmental and private organizations engaged in the livestock sector may obtain the associated membership of the Committee with the approval of the Committee and they shall not be entitled to vote at the meetings or to hold any office of the Committee.
The Chairperson and the Secretary of the Committee	56. The Chairperson of the Committee shall be elected from among the members of Rural Livestock Development Societies and the Veterinary Medical Officer of the Division shall be the ex-officio Secretary to the Committee.
The term of Office of Members	57. The term of office of the non ex-officio members shall terminate, when they cease to be members of the society they represent.
Meetings and quorum of the Committee	58. Meetings of the Committee shall be convened once in every 03 months and the quorum of such meeting shall be 1/3 of the membership.

59. Functions of the Committee shall be as follows:

Functions of the
Committee

- (1) to formulate the Regional Livestock Development Plan based on the Provincial and Rural Livestock Development Plans;
- (2) to formulate special project proposals in accordance with the regional potentialities and to seek financial provisions for the same while coordinating among other relevant institutions;
- (3) to provide necessary assistance and guidance to formulate the Rural Livestock Development Plan;
- (4) to take action on matters referred to the Committee by the Rural Livestock Development Societies;
- (5) to ensure the efficient and effective utilization of funds received to the Rural Livestock Development Societies for the livestock sector from different financial resources;
- (6) to liaise between Rural Livestock Development Societies and Zonal Livestock Development Committees;
- (7) to allocate financial provisions received for the livestock sector within the area of authority of the Regional Committee to the beneficiaries;
- (8) to take action to ensure that the beneficiaries have easy access to the inputs of the live stock sector.

Part VII

Zonal Livestock Development Committee

60. There shall be established a Zonal Livestock Development Committee for each zone as demarcated under Section 7 of this Statute and shall be registered with the Department.

Establishment and
registration of Zonal
Live Stock
Development
Committees.

61. The Director shall prepare the Constitution of the Zonal Livestock Development Committees which shall be approved by the Minister. Every Zonal Livestock Development Committee shall act in compliance with the said Constitution.

The Constitution of
Committees

62. The constitution of the Committee shall be as follows:

The Constitution of the
Committee

- (1) Deputy Director in charge of the Zone;
- (2) four Veterinary Medical officers appointed by the Provincial Director;
- (3) a representative of the District Secretary;
- (4) an Assistant director of Agriculture nominated by the Provincial Director of Agriculture;
- (5) District Health Services Director or his representative.
- (6) a representative of the Provincial Central Environment Authority;
- (7) four senior animal development advisors appointed by the Provincial Director;

	(8) Public Health Veterinary Medical officer appointed by the Provincial Director;
	(9) a Livestock Investigation Officer;
	(10) a representative of the Agrarian Insurance Board ;
	(11) representatives of the Livestock Development Board and dairy purchasing companies appointed by the Provincial Director;
	(12) Chairpersons of Regional Livestock Development Committees or their representatives;
Associated Membership	63. The representatives of governmental, non-governmental and private organizations engaged in the livestock sector may obtain the associated membership of the Committee with the approval of the Committee and they shall not be entitled to vote at the meetings or to hold any office of the Committee.
The Chairperson and the Secretary of the Committee	64. The Chairperson of the Committee shall be elected from among the Chairpersons of Regional Livestock Development Committees and the Deputy Director in charge of the Zones shall be the ex-officio Secretary to the Committee.
The Term of Office	65. The term of office of a non ex-officio member shall terminate, when he ceases to be a member of the Regional Livestock Development Committee.
Meetings and quorum of the Committee	66. Meetings of the Committee shall be convened once in every 04 months and the quorum of such meeting shall be $\frac{1}{3}$ of the membership. The Secretary may convene supplementary meetings of the Committee under special circumstances on notice thereof to the Chairperson.
Functions of the Committee.	67. Functions of the Committee shall be as follows: (1) to actively participate in the formulation and implementation of the Zonal Livestock Development Plan; (2) to liaise with the Provincial Livestock Development Committee; (3) to take action on matters referred to the Committee by the Regional Livestock Development Committees; (4) to submit proposals for the formulation of Provincial Livestock Development Plan; (5) to co-ordinate among Regional Livestock Development Committees; (6) To nominate three representatives of the dairy sector to the Management Board of the Dairy Development fund.

Part VIII

Dairy Development Fund

Dairy Development Fund	68. There shall be established a Fund hereinafter referred to as the Dairy Development Fund.
Fund to be a body Corporate	69. The Fund by the name assigned to it be a body corporate and shall have perpetual succession and a common seal and may carry out all functions related to the livestock sector and may sue and be sued in such name.

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| 70. The Director of the North Western Provincial Department of Animal Production and Health shall be responsible for the administration of the Fund. | Administration of the Fund |
| 71. There shall be appointed a Board of Management for the administration, management and control of the Dairy Development Fund. | Board of Management of the Fund |
| 72. (1) The Board of Management of the Dairy Development Fund hereinafter referred to as the "Board" shall constitute of the following: | Construction of the Board of Management |
| (I) Secretary to the Provincial Ministry in-charge of the subject; | |
| (II) Deputy Chief Secretary nominated by the Chief Secretary of the North Western Provincial Council; | |
| (III) the Regional manager of the MILCO Ltd. and two agents of two dairy purchasing private companies; | |
| (IV) a specialist in the field of dairy farming; | |
| (V) three representatives engaged in the dairy sector and nominated by the Zonal Livestock Development Committees. | |
| (2) The members other than the Deputy Chief Secretary nominated by the Secretary to the Provincial Ministry in-charge of the subject and Chief Secretary shall be appointed by the Minister. | |
| 73. (1) The Secretary to the Provincial Ministry in-charge of the subject shall be the ex-officio Chairperson of the Board. | Chairperson and Secretary of the Board of Management |
| (2) The Director of the Provincial Department of Animal Production and Health shall be the ex-officio Secretary to the Board. | |
| 74. (1) The term of office of a member appointed by the Minister shall be 3 years from the date of appointment and the office of such member shall terminate on the cessation of membership of the Rural or Zonal Livestock Development Committees. | Appointment, term of Office and cessation of membership of members of the Board and Legal Action |
| (2) The Minister shall have the power to remove any member appointed by him, at any time when the Minister is satisfied that such member does not duly execute the duties and responsibilities of the office and his holding the office is harmful to the Board. | |
| (3) The membership of an ex-officio member shall terminate, when he ceases to hold the office on which he was appointed to the Board. | |
| (4) Any member other than ex-officio members of the Board may resign from office by a written request addressed to the Minister. | |
| (5) The membership of a member shall terminate by reason of his death or insanity. | |
| (6) The term of office of any member appointed to fill a vacancy created by reason of resignation or removal of any member shall be limited to the remaining period of his predecessor. | |
| (7) The Chief Secretary shall take legal action at any time expeditiously, against any financial fraud or misappropriation in respect of the fund | |

Remuneration for Participation	75. The members and the Secretary of the Board participating in the meetings of the Board may be remunerated at such rates as may be determined by the Minister with the approval of the Governor.
The quorum of the Board	76. The quorum of the meetings of the Board shall at least be 05 members including the Chairperson.
Bank Account of the Fund	77. (1) The Director of the Provincial Department of Animal Production and Health shall maintain a current account in a State bank in favor of the Fund. (2) All monies paid into the Fund shall be deposited to the credit of the account. (3) Action shall be taken to deposit the excessive monies determined by the Board of Management in a fixed deposit in a State bank.
Payments into the Fund	78. There shall be paid into Fund: (1) such sums of money out of the Provincial Council Fund as may be allocated in accordance with the Livestock Development Plan prepared annually for the purpose of livestock development; (2) all sums of money received from public institutions or Local Authorities; (3) the contributions received from companies engaged in purchasing of over 1000 liters of milk on a daily basis within the province at a rate of rupees one per every liter of milk so purchased; (4) all donations and gifts from local, foreign, non-government and private organizations which contribute for the animal development in the province; (5) the interest of the fixed deposit; (6) the insurance premium; (7) the surplus remaining after liquidation of Rural Livestock Development Societies; (8) all monies collected as fines by the court on conviction of offences committed in contravention of provisions of this Statute; (9) loan installments and interests; (10) such sums of money received as fees for registration of institutions and farms; (11) all monies received from other sources.
Payment out of the Fund	79. The Director of the Department of Animal Production and Health may pay out of the Fund for the following purposes, subject to the approval of the Board of Management and in compliance with the North Western Provincial Financial Regulations and provisions: (1) for dairy promotional programmes; (2) for providing loans to beneficiaries; (3) for the payment of insurance claims; (4) for establishments and administration expenses.

80. The functions of the Fund shall be as follows:	Function of the Fund
(1) to implement dairy promotional programmes; (2) to implement relief programmes; (3) to implement insurance programmes; (4) to implement farmer empowering programmes; (5) to carry out provincial research activities; (6) to develop human resource; (7) to carry out welfare activities of the families who have been registered as permanent members in a dairy society in the North Western province.	
81. The accounts of the Fund shall be audited by the Auditor-General.	Audit of Accounts of the Fund
82. The Minister may make regulations as may be required for the purpose of the discharging the functions of the Fund.	Regulations
83. (1) The functions of the Fund shall be attended to by the staffs of the Provincial Ministry in-charge of the subject and the Department of Animal Production and Health, subject to approval of the Board of Management.	The Staff of the fund and remuneration to the Staff
(2) Where the staff should be paid an additional remuneration, the staff may be remunerated at such rates as may be determined by the Minister subject to approval of the Governor.	

Part IX

General

84. (1) The Minister shall issue necessary instructions, guidance and orders for the implementation of provisions of the Statute.	Powers of the Minister
(2) The Minister shall demarcate the divisions referred to in Section 7 of this Statute and such demarcations shall be published in the Gazette.	
(3) The Minister shall have the power to impose restrictions as appropriate in transporting animals within and out of the province.	
(4) The Minister shall have the power to make regulations in respect of prevention and control of animal diseases within the province.	
85. (1) Every regulation made by the Minister under this Statute shall be published in the <i>Gazette</i> and shall come into operation on the date of such publication or on such date as may be specified in such regulation.	Regulations
(2) Every regulation made by the Minister shall, as soon as it is convenient after its publication in the Gazette, be brought before the Provincial Council for approval. Any regulation which is not so approved by the Provincial Council, shall be deemed to be rescinded as from the date of disapproval but without prejudices to anything previously made thereunder and a notification to the effect shall be published in the <i>Gazette</i> .	
86. (1) Any person aggrieved by any provision of this Statute or any regulation made under this Statute or by any order or decision made by any officer, may prefer an appeal to the Minister.	Appeals

(2) The Minister may affirm, reject or amend the order or decision against which the appeal has been preferred on the recommendation made by an officer or a Board of Inquiry appointed by the Secretary by order of the Minister, after an inquiry into the matter.

Right to Information	87. Every party registered under Section 19 of this Statute shall provide accurate information relating to the livestock sector on demand to the Director, at any time such information has been so requested.
Monthly report	88. Every institute which is registered under Section 19 of this Statute and engaged in purchasing milk, meat and eggs produced in the province, shall submit to the Director a monthly report indicating the amounts it purchased during the month in the format as may be specified by the Provincial Director before the 15 th day of the following month.
Contribution	89. Every institute which is registered under Section 19 of this Statute and purchases more than 1000 liters of milk a day shall make a contribution of Rupees one for every litter of milk it purchases, to the Dairy Promotion Fund.
Approval for projects and programmes to be obtained	90. Every government or non-government institution, organization, foundation, forum, project, programme or similar institution, person or group of persons shall obtain the approval of the Provincial Livestock Development Committee, prior to commencing any project or programme for the extension and promotion of livestock, provision of education, services and for the conduct of researches on livestock within the province.
Repeal of the Ordinance	91. The Livestock Statute Ordinance, No. 04 of 1998 of the North Western Province is hereby repealed.

Part X

Offences and Penalties

Violation of Provisions or Regulations	92. Every person, establishment or organization who contravenes any provisions of this Statute or any regulation made thereunder shall be guilty of an offence under this Statute.
Penalty for Contravention of this Statute	93. Every person who contravenes or fails to comply with any provision of this Statute, shall on conviction after summary trial by a Magistrate be punishable with imprisonment for a term not exceeding 12 months or to a fine not exceeding rupees hundred thousand or to both such fine and imprisonment.
Power to Institute action and recover the fines to the Fund	94. (1) Where an offence under this Statute is committed, the Provincial Director or any other officer authorized by him shall have the power to institute action. (2) The Provincial Director or the officer authorized by him shall take action to recover the fines charged by the Courts under Section 92 of this Statute, to the Dairy Promotion Fund.

Part XI

Interpretation

Interpretation	95. In this Statute unless the context otherwise requires:- “ Province ” means the North Western Province; “ Governor ” means the Governor of the Provincial Council of the North Western Province; “ Minister ” means the Minister in-charge of the subject of Livestock of the Provincial Council of the North Western Province;
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“ Chief Secretary ” means the Chief Secretary of the Provincial Council of the North Western Province;

“ Provincial Ministry ” means the Ministry in-charge of the subject of Livestock of the Provincial Council of the North Western Province;

“ Secretary ” means the Secretary to the Ministry in-charge of the subject of Livestock of the Provincial Council of the North Western Province;

“ Department ” means the North Western Provincial Department of Animal Production and Health;

“ Director ” means the Director of North Western Provincial Department of Animal Production and Health;

“ Provincial livestock research ” means experiments carried out at the provincial level (other than those to form basic theories) to resolve technical and related issues that may arise in the process of livestock development at provincial level; to obtain recommendations on innovations; and to establish the relevance of recommendations made and technologies introduced;

“ Farm ” means the units where stock such as cattle, buffalos, goats, sheep, swine, hare, poultry, quills, ducks and turkey are raised and maintained;

“ Manufacturing plant ” means a place where food, materials, utensils, medicine related to the livestock sector and animal feed are manufactured or value added;

“ Livestock ” means the stock such as cattle, buffalos, goats, sheep, swine, hare, poultry, quills, ducks and turkey;

“ State bank ” means the Bank of Ceylon, People’s Bank, National Savings Bank and Regional Development Bank;

“ reasonable time ” means a period of time, as may be determined as the case may be, by the Director in relation to any matter depending on its nature;

“ Certificate of eligibility ” means the qualifications of the vehicle to be used for the animal transportation;

“ Rural societies ” mean the rural livestock development societies;

“ Sales outlets ” mean the places where food items, objects, tools, medicines, livestock products in the field of livestock are sold;

“ Cold store ” means the place where the livestock products are stored, until consumed.

96. In the event of any inconsistency between the Sinhala, Tamil and English texts of this Statute, the Sinhala text shall prevail.

Sinhala text to Prevail
in case of inconsistency